

Defendant's motion to quash service of summons is DENIED WITHOUT PREJUDICE.

Defendant moved to quash service under Code of Civil Procedure section 418.10. Defendant's time to plead has expired, rendering Code of Civil Procedure section 418.10 inapplicable.

Further, the proof of service by Defendant is defective. The proof of service must be made by an individual not a party to the action. Here, it appears that Defendant herself is the one who served the motion. It also appears that Defendant served the motion at the wrong email address for Plaintiff's attorney.

Last, Defendant's motion and declaration are defective as they are not signed by Defendant.

26CV-02384 Confidential

Hearing: In Camera

Appearance required.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Short Cause Court Trials
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Monday, June 8, 2026
1:30 pm

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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25CV-05034-APP	Kamani Morrow vs. Thanh Smith
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Trial De Novo

Appearance required.

26CV-01177	John Doe vs The Regents of the University of California
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Writ of Mandate

Appearance required.
